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General Knowledge

Indian Polity

STUDY NOTES

AMENDMENTS OF INDIAN CONSTITUTION

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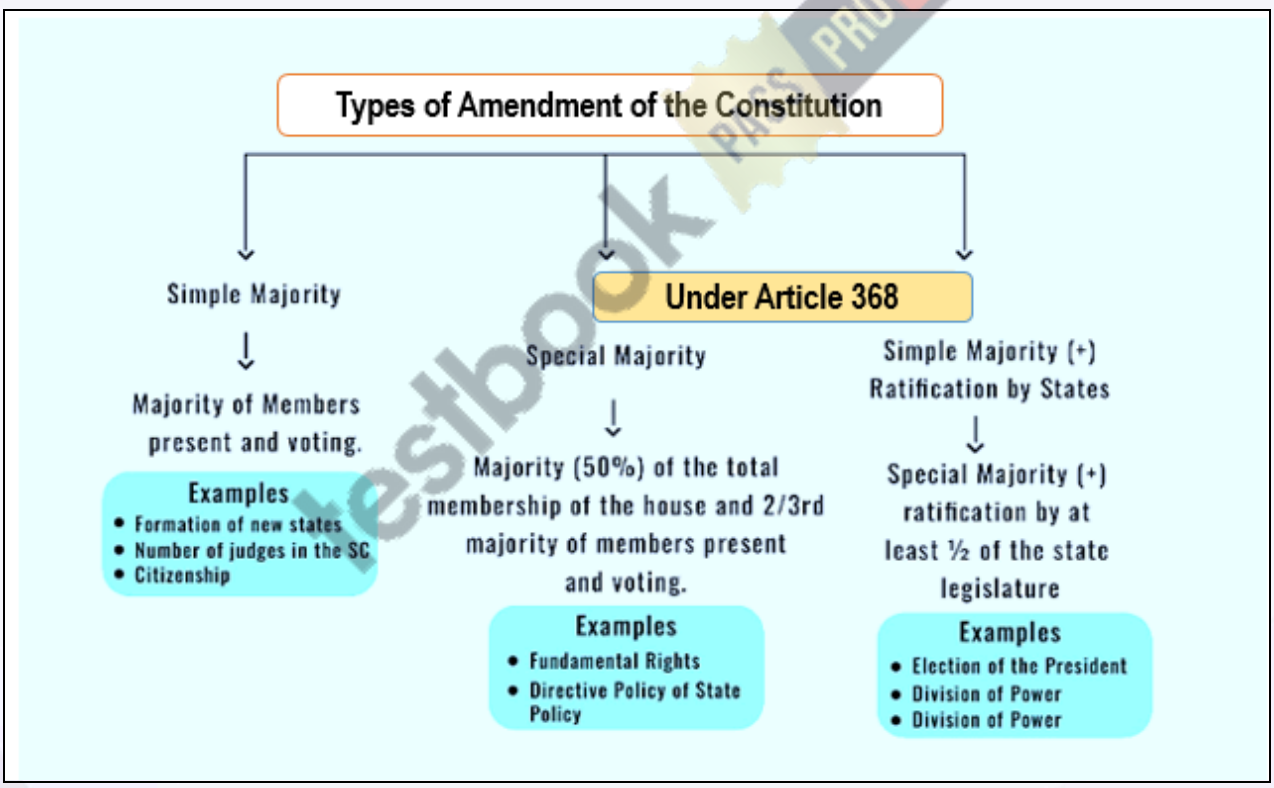
AMENDMENTS OF INDIAN CONSTITUTION

Introduction:

- The amendment of the Constitution involves adding, changing, or removing provisions as per the laid-down procedure.
- The parliament has the authority to change the constitution under **Article 368** of **Part XX.**
- The process for amending the Constitution is borrowed from the **South African Constitution.**
- An amendment bill can only be introduced in either house of Parliament, not in the State Legislatures.
- The President is required to give their approval to the bill and cannot withhold or return it for reconsideration by Parliament.

Types of Amendments in the Indian Constitution:



- **Article 368** of the Indian Constitution provides for two types of amendments:
  - **By a Special Majority of Parliament**:
    - Requires a majority of **50% of the total membership** of the House and **2/3rd of the members present and voting**.
  - **By a Special Majority of Parliament plus ratification by states**:

    - Requires **ratification by at least half of the state legislatures** by a simple majority.

- There is also another type of amendment:
  - **By a Simple Majority of Parliament**:
    - Requires 50 percent of members present and voting.
    - These amendments are not considered amendments under the scope of Article 368.
- Therefore, the Constitution can be amended in three ways:
  - **Amendment by a Simple Majority of Parliament**.
  - **Amendment by a Special Majority of Parliament**.
  - **Amendment by a Special Majority of Parliament plus ratification by half of the state legislatures**.

Amendment	Changes Introduced
1st Amendment Act, 1951	Addition of Ninth Schedule; Empowerment of the state for special provisions for the advancement of socially and economically backward classes; Insertion of 31A and 31 B
2nd Amendment Act, 1952	Readjustment of representation in Lok Sabha
7th Amendment Act, 1956	Abolition and reorganization of states into 14 states and 6 union territories; Extension of jurisdiction of high courts
10th Amendment Act, 1961	Incorporation of Dadra and Nagar Haveli in the Indian Union
15th Amendment Act, 1963	Enabled high courts to issue writs outside territorial jurisdiction; Increase in the retirement age of high court judges; appointment of retired judges; compensatory allowance to transferred judges
24th Amendment Act, 1971	Power of Parliament to amend any part of the Constitution

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25th Amendment Act, 1971	Introduction of new Article 31C; limited the fundamental right to property
26th Amendment Act, 1971	Recognition granted to Rulers of Indian States to cease and privy purses to be abolished
34th Amendment Act, 1974	Amendment of the Ninth Schedule to include revised ceiling laws
38th Amendment Act, 1975	Emergency declared as non-justiciable; empowerment of the president to declare different proclamations of national emergency
42nd Amendment Act, 1976 (Mini Constitution)	Addition of words socialist, secular and integrity in Preamble; Added Fundamental Duties; Extended tenure of Lok Sabha and state legislative assemblies; Established All-India Judicial Service
44th Amendment Act, 1978	Restoration of powers of the Supreme Court and high courts; made the right to property a legal right
51st Amendment Act, 1984	Provision of reservation of seats for Scheduled Tribes in certain states
52nd Amendment Act, 1985 (Anti Defection Law)	Disqualification of members of Parliament and state legislatures on ground of defection
61st Amendment Act, 1989	Reduced voting age from 21 years to 18 years
65th Amendment Act, 1990	Establishment of National Commission for Scheduled Castes and Scheduled Tribes
69th Amendment Act, 1991	Made Delhi as 'National Capital Territory of Delhi'

73rd Amendment Act, 1992	Panchayati Raj Institutions included under Eleventh Schedule
74th Amendment Act, 1992	Gave constitutional status and protection to urban local bodies
76th Amendment Act, 1994	Included Tamil Nadu Reservation Act of 1994 in Ninth Schedule
77th Amendment Act, 1995	Provided for reservation in promotions in government jobs for SCs and STs
80th Amendment Act, 2000	An alternative scheme of devolution of revenue for sharing taxes
85th Amendment Act, 2001	Provided for "consequential seniority" in the case of promotion for SCs and STs
86th Amendment Act, 2002	Made elementary education a fundamental right
91st Amendment Act, 2003	Limited size of Council of Ministers; strengthened anti-defection law
93rd Amendment Act, 2005	Reservation for backward classes in private unaided educational institutions
97th Amendment Act, 2012	Gave constitutional status to co-operative societies
99th Amendment Act, 2014	Replaced collegium system of appointing judges with National Judicial Appointments Commission (NJAC)

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100th Amendment Act, 2015	Gave effect to acquiring of territories by India and transfer of certain territories to Bangladesh
101st Amendment Act, 2016	Introduction of Goods and Service Tax
102nd Amendment Act, 2018	Provided constitutional status to the National Commission for Backward Classes
103rd Amendment Act, 2019	Empowered the state to make provisions for the advancement of any economically weaker sections (EWS)
104th Amendment Act, 2020	Extension of deadline for reserved seats for SCs and STs; Removal of reserved seats for Anglo-Indian community
105th Amendment Act, 2021	restores the power of State Governments and Union Territories to identify the Socially and Educationally Backward Classes (SEBCs). Amended Articles 338B, 342A, and 366 of the Constitution.
106th Amendment Act, 2023	Reserves one-third of all seats for women in Lok Sabha, State legislative assemblies, and the Legislative Assembly of the National Capital Territory of Delhi, including those reserved for SCs and STs.

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